

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                           |                                                       |                                               |                                 |
|--------------------------------------------------|-------------------------------------|---------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Jillian de Chavez               | Team:<br>Team # 2                   | CCRB Case #:<br>200905908 | <input checked="" type="checkbox"/> Force             | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                     |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Saturday, 01/24/2009 8:00 PM | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>7/24/2010   | Precinct:<br>09                                       |                                               |                                 |
| Date/Time CV Reported<br>Fri, 04/17/2009 1:03 PM | CV Reported At:<br>CCRB             | How CV Reported:<br>Mail  | Date/Time Received at CCRB<br>Fri, 04/17/2009 1:03 PM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POM Daniel Silverio | 23765  | 943816 | 009 PCT |
| 2. POM Sergio Delamota | 18344  | 943137 | 009 PCT |
| 3. POM Edward Thompson | 26456  | 942609 | 009 PCT |
| 4. Officers            |        |        |         |

| Witness Officer(s) | Shield No | Tax No | Cmd Name |
|--------------------|-----------|--------|----------|
| 1. An officer      |           |        |          |

| Officer(s)              | Allegation                                                                                           | Investigator Recommendation   |
|-------------------------|------------------------------------------------------------------------------------------------------|-------------------------------|
| A . POM Daniel Silverio | Abuse: PO Daniel Silverio stopped the car in which § 87(2)(b) and § 87(2)(b) Unknown were occupants. | A . Complainant Uncooperative |
| B . POM Sergio Delamota | Abuse: PO Sergio Delamota stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.         | B . Complainant Uncooperative |
| C . POM Daniel Silverio | Force: PO Daniel Silverio used physical force against § 87(2)(b) and § 87(2)(b).                     | C . Complainant Uncooperative |
| D . POM Sergio Delamota | Force: PO Sergio Delamota used physical force against § 87(2)(b) and § 87(2)(b).                     | D . Complainant Uncooperative |
| E . POM Daniel Silverio | Abuse: PO Daniel Silverio searched § 87(2)(b) and § 87(2)(b).                                        | E . Complainant Uncooperative |
| F . POM Sergio Delamota | Abuse: PO Sergio Delamota searched § 87(2)(b) and § 87(2)(b).                                        | F . Complainant Uncooperative |
| G . POM Daniel Silverio | Abuse: PO Daniel Silverio searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.        | G . Complainant Uncooperative |
| H . POM Sergio Delamota | Abuse: PO Sergio Delamota searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.        | H . Complainant Uncooperative |
| I . POM Edward Thompson | Abuse: PO Edward Thompson searched § 87(2)(b) and § 87(2)(b).                                        | I . Complainant Uncooperative |
| J . POM Edward Thompson | Discourtesy: PO Edward Thompson spoke obscenely and rudely to § 87(2)(b) and § 87(2)(b).             | J . Complainant Uncooperative |
| K . Officers            | Force: Officers used physical force against § 87(2)(b).                                              | K . Complainant Uncooperative |

| Officer(s)   | Allegation                                                   | Investigator Recommendation   |
|--------------|--------------------------------------------------------------|-------------------------------|
| L . Officers | Abuse: Officers seized § 87(2)(b) and § 87(2)(b) s property. | L . Complainant Uncooperative |

## Synopsis

On April 17, 2009 the CCRB received the following complaint by mail from § 87(2)(b). Her letter was dated March 27, 2009.

On January 24, 2009 § 87(2)(b) was driving in Manhattan towards Liberty, NY. She was accompanied by her § 87(2)(b) daughter, § 87(2)(b) and § 87(2)(b) (age unknown), a friend of § 87(2)(b)s. At § 87(2)(b), PO Daniel Silverio and PO Sergio Delamota stopped § 87(2)(b)s vehicle (**Allegations A and B**). They said that they may have seen smoke or § 87(2)(b) using her cell phone while driving. PO Silverio and PO Delamota opened the car doors and pulled § 87(2)(b) and § 87(2)(b) out of the car (**Allegations C and D**). PO Silverio and PO Delamota searched the three individuals and removed Motrin from § 87(2)(b)s pocket (**Allegations E and F**). PO Silverio and PO Delamota proceeded to search § 87(2)(b)s vehicle (**Allegations G and H**). A marijuana roach and a broken bebe gun were taken from the car. PO Edward Thompson and his partner, PO4, arrived. PO Thompson searched § 87(2)(b) and § 87(2)(b) (**Allegation I**). As PO Thompson searched them, he made vulgar remarks such as, “Stupid bitches, you will fucking learn. This is a fucking lesson. Don’t you love NYC? I’ll bet you never come back again” (**Allegation J**). While searching § 87(2)(b) § 87(2)(b), § 87(2)(g) § 87(2)(b) asked PO Thompson to stop. PO Thompson answered, “Shut the fuck up bitches before I make it worse” (**Allegation J**). § 87(2)(b) and § 87(2)(b) were handcuffed. Officers pushed § 87(2)(b) against a vehicle, bruising her (**Allegation K**). § 87(2)(b) and § 87(2)(b) were transported to the 9<sup>th</sup> Precinct. At the precinct, § 87(2)(b)s car was seized and emptied of its contents (**Allegation L**). § 87(2)(b) and § 87(2)(b) were released on January 26, 2009. They claimed their property but a number of items that were in § 87(2)(b)s car were missing § 87(2)(g).

On April 22, 2009 the investigator contacted § 87(2)(b) by phone and scheduled an interview for herself and § 87(2)(b) on May 4, 2009. On May 4, 2009 § 87(2)(b) and § 87(2)(b) did not appear for their interviews. They did not call in advance to cancel or reschedule. On May 6, 2009 the investigator called § 87(2)(b) and scheduled an interview for her and § 87(2)(b) on May 13, 2009. On May 13, 2009 § 87(2)(b) and § 87(2)(b) did not appear for their interviews. They did not call in advance to cancel or reschedule. The investigator could not contact § 87(2)(b) because neither § 87(2)(b) nor § 87(2)(b) was able to provide contact information for him. Neither of them had been able to get in touch with § 87(2)(b) since the incident.

§ 87(2)(g)

It is recommended that **Allegations A through L** be closed as **Complainant Uncooperative**.

Investigator: Jillian de Chavez

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: